



Appeal Decisions

Site visit made on 18 August 2026

by David Troy BSc (Hons) MA MRTPI

an Inspector appointed by the Secretary of State

Decision date: 10 September 2026

Appeal A Ref: 6010846

Footpath outside 141 Camden High Street, London, NW1 7JR

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Verity Cheyne of BT Group PLC against the decision of the Council of the London Borough of Camden.
 - The application Ref is 2025/5872/P.
 - The development proposed is Installation of 1 No. BT Street Hub Unit and Associated Advertisement Panels on either Side of the Unit.
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Appeal B Ref: 6010847

Footpath outside 141 Camden High Street, London, NW1 7JR

- The appeal is made under Regulation 17 of the Town and Country Planning (Control of Advertisements) (England) Regulations 2007 (as amended) against a refusal to grant express consent.
 - The appeal is made by Verity Cheyne of BT Group PLC against the decision of the Council of the London Borough of Camden.
 - The application Ref is 2026/0178/A.
 - The advertisement proposed is Installation of 1 No. BT Street Hub Unit and Associated Advertisement Panels on either Side of the Unit.
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Decisions

1. Appeals A and B are dismissed.

Preliminary Matters

2. Appeal A concerns the refusal of planning permission to erect a BT Street Hub Unit (Hub). Appeal B concerns the refusal of express consent to display advertisements on the Hub. I have considered each on its individual merits, however, as they raise similar issues I have combined both decisions into a single decision letter.
3. With respect to Appeal B, Town and Country Planning (Control of Advertisements) (England) Regulations 2007 (the Regulations) specify that decisions must be based solely on considerations of amenity and public safety. Therefore, while I have taken the development plan policies referred to by the Council into account, they have not been determinative in respect of Appeal B.
4. Since the determination of the application an updated and revised National Planning Policy Framework (the Framework) was published on 17 August 2026. The main parties have been consulted and provided with an opportunity to provide comments on it in relation to these appeals. I have therefore considered the development against the relevant policies in the Framework.

Main Issues

5. The main issues in relation to Appeal A are the effect of the proposed development on (i) the character and appearance of the area, including the Camden Town Conservation Area (CA), (ii) highway safety, and (iii) community safety and security.
6. The main issue in relation to Appeal B is the effect of the proposed advertisements on the amenity of the area, having regard to heritage assets.

Reasons

Appeals A and B - Character and Appearance/Amenity

7. The appeal site comprises of a footpath outside No. 141 Camden High Street, a three storey commercial premises situated within the CA on the busy Camden High Street. It forms part of a terrace with retail and commercial units at ground floor level located within Camden Town Centre that provides a busy and vibrant commercial character to the area.
8. The public realm in the vicinity of the appeal site is defined by the relatively wide and broad nature of the footway occupied by an array of street furniture and other features, including telephone kiosks, bins, lamp posts and a bus shelter. As such, the footway is relatively cluttered in terms of these various structures and features.
9. The new Hub would replace the existing telephone kiosks and would be positioned in a prominent location set back a short distance from the edge of the pavement and would be clearly visible to passing pedestrians and motorists. Due to its height, width and overall solidity it would be the most prominent feature within its immediate setting. Thus, despite the commercial town centre location, due to its overall size and visibility, it would add unfavourably to the existing features, resulting in an overly cluttered and visually incongruous street scene, which I consider would adversely harm rather than positively contribute to the character and appearance of the area.
10. The predominant form of advertisement are modestly sized fascia signage and projecting signs that are proportionate to the scale of the shops and other commercial premises. While this is a town centre location, the double-sided illuminated advertisement display screens integrated with the Hub would draw particular attention to the juxtaposition of the free standing Hub with the existing street furniture and as such would contribute to the visually cluttered appearance of the street scene in this location. The fact that the illumination levels would be limited at night and the frequency of image changes could be controlled by planning conditions would not be sufficient measures to overcome the harm I have found to the visual amenity of the area.
11. Given the location of the appeal site within the CA, special attention must be paid to considering the impact of the development on the significance of the designated heritage assets and to the desirability of preserving or enhancing the character or appearance of the CA. The historic and architectural significance of the CA with its older more traditional 19th and 20th Century buildings of varying styles in the surrounding streets can be readily appreciated within the immediate vicinity of the site. I consider that the proposed Hub and advertisement, by virtue of their siting

and design, would have a negative material impact on how the CA is viewed and appreciated and as such would fail to preserve or enhance the CA.

12. Whilst the degree of harm resulting from the proposed Hub and advertisement on the significance of the CA would be at the lower level, in accordance with Policy HE6 (4) of the Framework, that harm should be weighed against any public benefits of the proposals.
13. I have considered the appellant's comments regarding the substantial weight to be given to the benefits of improving telecommunications infrastructure in line with the policies in the Framework and the various public benefits put forward by the appellant. These benefits include the upgrading of telecommunications infrastructure through providing free calls; free wi-fi and device charging; wayfinding; access to emergency services; air quality sensors; pedestrian flow monitoring; in-built CCTV cameras as well as the Hub being powered by renewable energy. The appellant has also highlighted the potential for advertising for local businesses, free services to the council, including the ability to obtain data from the Hub.
14. Nonetheless, whilst given substantial weight in line with the Framework, given the limited scale of the proposals, these benefits would be modest. I therefore find insufficient public benefits arising from the proposals to offset the identified harm to which I attach substantial weight.
15. Accordingly, for these reasons, I conclude for Appeal A that the proposed development would have an unacceptably harmful effect on the character and appearance of the area, including the CA. It would therefore be contrary to Policies D1 and D2 of the Camden Local Plan 2017 (CLP), which, amongst other things, seek to ensure that developments are designed and sited so as to respect the local character, preserve or enhance the historic environment and the significance of designated heritage assets and their settings.
16. With regard to Appeal B, I conclude the proposed advertisements would have an unacceptable harmful effect on visual amenity. Though not determinative, I have taken account of Policies D1, D2 and D4 of the CLP, which in addition to above, seeks to preserve the character and amenity of the area and resist advertising that contributes to street clutter in the public realm.

Appeal A - Highway Safety

17. The proposed Hub would be positioned close to the edge of the relatively wide pavement. Camden High Street is a principal commercial shopping street within the town centre, and it was apparent from my site visit on a weekday that the footpath is relatively busy. Although this was just a snapshot in time, I am mindful of the Council's Transport Officer's comments regarding the high footfall in this location and that it is likely to be materially greater at certain times, particularly at weekends.
18. I note the appellant's comments that the proposed Hub would be marginally wider than the existing kiosks on the site and would leave around 2.7m of unobstructed footpath width available in front of the adjacent shop frontages and about 2.0m to the road kerbside edge. However, this does not take into account the footfall and the wide array of street furniture that already constrain the width of the footpath.

19. I observed that many pedestrians naturally moved to the central area of the pavement to avoid the existing street furniture and other features and close to the position of the existing kiosks and the proposed Hub, which formed a natural desire line for pedestrians in this location. This situation would be worsened by virtue of the Hub's design, where users would need to stand on the footpath to the side of the structure to use the Hub's facilities and as such create an additional obstruction on the footpath in front of the commercial premises.
20. Consequently, given the use of the space available on the footpath and the potential footfall in this busy location, I consider, in my view, that the proposed Hub, by virtue of its siting and design, would cause an undue obstruction to pedestrians and impede the free flow of pedestrian movements. I note the appellant's willingness to move the proposed Hub closer to the kerbside edge in line with the existing kiosk. This, however, would result in material changes to the proposals before me and in any event, I am required to consider the proposals on the basis of the same details that were before the Council when it made its decision.
21. Therefore, for the reasons given, I conclude with regard to Appeal A that the proposed Hub would have a harmful effect on highway safety with particular regard to the free and safe movement of pedestrians. Consequently, the proposal would be contrary to Policies G1, A1, C6 and T1 of the CLP, insofar as they relate to ensuring the delivery of high quality development that meets the highest practicable standards of accessible and inclusive design and prioritises walking (among other sustainable means of transport) by providing high-quality footpaths of adequate width for the number of people expected to use them.

Appeal A - Community Safety and security

22. The Council has described installations such as telephone kiosks and hubs as "crime generators" and focal points for anti-social behaviour. The Council state that they have experienced a rise in crime and anti-social behaviour as a direct result of the existing InLink kiosks in areas such as Camden Town. These activities include increased loitering, as well as the usage of the free calls facility at the InLink kiosks to coordinate drug dealing. This, however, is couched in general 'area' terms rather than specifically related to the appeal site.
23. The Metropolitan Police's Crime Prevention Design Advisor commented that the locations around the existing InLink kiosks and along Camden High Street, often see higher levels of crime and anti-social behaviour, particularly linked to the night-time economy, and that the proposed Hub is larger than the previous InLink kiosks and as such would create a larger space for possible concealment. They also noted that, due to the openness of the proposed Hub, it could offer opportunities for would-be criminals to observe people using or charging their phones at the appeal site and would be vulnerable to opportunistic phone thefts.
24. However, while I do not seek to downplay the harmful impacts of street crime and anti-social behaviour, there is limited substantive evidence before me, including recent site-specific crime data, to demonstrate that these issues would be increased as a result of the proposed Hub in this particular location. If I had been minded to allow this appeal, a condition requiring the proposed Hub to be operated in accordance with the appellant's submitted Anti-Social Behaviour Management

Plan would be necessary, in the interests of community safety and preventing anti-social behaviour and crime.

25. As such, there would be no significant adverse effect on community safety and security. I therefore find no conflict with Policy C5 of the CLP, which seeks to tackle crime and anti-social behaviour, and to promote safer streets and public areas.

Other Matters

26. In support of the appeals the appellant has included references to similar structures installed across the local authority area and in others part of the country, together with a range of appeals that include advertisements. However, I have not been provided the full details of these to know how directly comparable they are to the current proposals, which in turn limits the relevance of the highlighted appeals. In any event I have determined the appeals before me on its own merits.
27. I acknowledge the existing illuminated advertisements on bus shelters in the locality highlighted by the appellant. However, they appear to have different locational and development characteristics to the appeal scheme and as such are not directly comparable to the appeals before me. As a consequence, whilst I have taken this into account, it does not materially alter my conclusions on the appeal proposals.
28. In light of my findings on the main issues, it is unnecessary to consider the need for a maintenance plan for the proposed Hub by way of a Section 106 legal agreement, as it would not be determinative.
29. The appellant states that the proposals would contribute towards improving telecommunications infrastructure in line with the Framework and the Code of Best Practice on Wireless Network Development in England 2022. I have considered the various other public benefits put forward by the appellant in the main issues above, including the removal of the existing telephone kiosks. However, the above combined benefits would not be sufficient to outweigh the harm I have identified in this case and there is no indication that they could not be achieved in a less harmful manner than proposed.

Conclusion

30. With regard to Appeal A, having regard to all other matters raised, I conclude that the proposed development is not in accordance with the development plan when read as a whole and Appeal A should be dismissed.
31. For the reasons given above, I conclude Appeal B should be dismissed.

David Troy

INSPECTOR